

SENATE BILL No. 62

DIGEST OF INTRODUCED BILL

Citations Affected: IC 31-30; IC 35-47.

Synopsis: Unlawful possession of a firearm by a child. Adds felony unlawful possession of a firearm by a child to the list of crimes for which a juvenile court shall, upon motion of the prosecuting attorney, waive jurisdiction under certain circumstances. Removes certain crimes concerning children and firearms from the list of crimes in which a juvenile court does not have jurisdiction for an alleged violation. Removes language in the unlawful carrying of a handgun statute prohibiting a person less than 18 years of age from carrying a handgun. Provides that the unlawful carrying of a handgun statute applies to a person who has been adjudicated as a delinquent child under the statute, and is at least 18 years of age but less than 23 years of age. Renames the "dangerous possession of a firearm" crime to "unlawful possession of a firearm by a child" and provides that the enhanced penalty applies if the offense was committed: (1) on or in school property; (2) within 500 feet of school property; or (3) on a school bus. Removes the reckless mens rea for unlawful possession of a firearm by a child. Makes technical changes.

Effective: July 1, 2026.

Taylor G

December 8, 2025, read first time and referred to Committee on Corrections and Criminal Law.



Second Regular Session of the 124th General Assembly (2026)

PRINTING CODE. Amendments: Whenever an existing statute (or a section of the Indiana Constitution) is being amended, the text of the existing provision will appear in this style type, additions will appear in **this style type**, and deletions will appear in ~~this style type~~.

Additions: Whenever a new statutory provision is being enacted (or a new constitutional provision adopted), the text of the new provision will appear in **this style type**. Also, the word **NEW** will appear in that style type in the introductory clause of each SECTION that adds a new provision to the Indiana Code or the Indiana Constitution.

Conflict reconciliation: Text in a statute in *this style type* or ~~this style type~~ reconciles conflicts between statutes enacted by the 2025 Regular Session of the General Assembly.

SENATE BILL No. 62

A BILL FOR AN ACT to amend the Indiana Code concerning family law and juvenile law.

Be it enacted by the General Assembly of the State of Indiana:

- 1 SECTION 1. IC 31-30-1-4, AS AMENDED BY P.L.218-2025,
2 SECTION 7, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE
3 JULY 1, 2026]: Sec. 4. (a) The juvenile court does not have jurisdiction
4 over an individual for an alleged violation of:
5 (1) IC 35-41-5-1(a) (attempted murder);
6 (2) IC 35-42-1-1 (murder);
7 (3) IC 35-42-3-2 (kidnapping);
8 (4) IC 35-42-4-1 (rape);
9 ~~(5) IC 35-42-4-2 (criminal deviate conduct) (before its repeal);~~
10 ~~(6) (5) IC 35-42-5-1 (robbery) if:~~
11 (A) the robbery was committed while armed with a deadly
12 weapon; or
13 (B) the robbery results in bodily injury or serious bodily
14 injury; or
15 ~~(7) IC 35-42-5-2 (carjacking) (before its repeal);~~
16 ~~(8) IC 35-47-10 (children and firearms), if charged as a felony; or~~
17 ~~(9) (6) any offense that may be joined under IC 35-34-1-9(a)(2)~~



1 with any crime listed in this subsection;
 2 if the individual was at least sixteen (16) years of age but less than
 3 eighteen (18) years of age at the time of the alleged violation.

4 (b) Once an individual described in subsection (a) has been charged
 5 with any offense listed in subsection (a), the court having adult
 6 criminal jurisdiction shall retain jurisdiction over the case if the
 7 individual pleads guilty to or is convicted of any offense listed in
 8 subsection (a)(1) through ~~(a)(8)~~: **(a)(5)**.

9 (c) If:

10 (1) an individual described in subsection (a) is charged with one

11 (1) or more offenses listed in subsection (a);

12 (2) all the charges under subsection (a)(1) through ~~(a)(8)~~ **(a)(5)**
 13 resulted in an acquittal or were dismissed; and

14 (3) the individual pleads guilty to or is convicted of any offense
 15 other than an offense listed in subsection (a)(1) through ~~(a)(8)~~;
 16 **(a)(5)**;

17 the court having adult criminal jurisdiction may withhold judgment and
 18 transfer jurisdiction to the juvenile court for adjudication and
 19 disposition. In determining whether to transfer jurisdiction to the
 20 juvenile court for adjudication and disposition, the court having adult
 21 criminal jurisdiction shall consider whether there are appropriate
 22 services available in the juvenile justice system, whether the child is
 23 amenable to rehabilitation under the juvenile justice system, and
 24 whether it is in the best interests of the safety and welfare of the
 25 community that the child be transferred to juvenile court. All orders
 26 concerning release conditions remain in effect until a juvenile court
 27 detention hearing, which must be held not later than forty-eight (48)
 28 hours, excluding Saturdays, Sundays, and legal holidays, after the order
 29 of transfer of jurisdiction.

30 (d) A court having adult criminal jurisdiction, and not a juvenile
 31 court, has jurisdiction over a person who is at least twenty-one (21)
 32 years of age for an alleged offense:

33 (1) committed while the person was a child; and

34 (2) that could have been waived under IC 31-30-3.

35 This subsection applies to a criminal proceeding for an alleged offense
 36 regardless of whether the offense was committed before, on, or after
 37 July 1, 2023, or the juvenile becomes twenty-one (21) years of age
 38 before, on, or after July 1, 2023.

39 SECTION 2. IC 31-30-3-5, AS AMENDED BY P.L.148-2024,
 40 SECTION 16, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE
 41 JULY 1, 2026]: Sec. 5. Except for those cases in which the juvenile
 42 court has no jurisdiction in accordance with IC 31-30-1-4, the court



shall, upon motion of the prosecuting attorney and after full investigation and hearing, waive jurisdiction if it finds that:

(1) the child is charged with:

(A) an act that, if committed by an adult, would be:

~~(A)~~ (i) a Level 1 felony, Level 2 felony, Level 3 felony, or Level 4 felony, except a felony defined by IC 35-48-4;

~~(B)~~ (ii) involuntary manslaughter as a Level 5 felony under IC 35-42-1-4;

~~(C)~~ (iii) reckless homicide as a Level 5 felony under IC 35-42-1-5; or

~~(D)~~ (iv) unlawful carrying of a handgun as a felony under IC 35-47-2-1.5; or

(B) unlawful possession of a firearm by a child, if charged as a felony under IC 35-47-10-5;

(2) there is probable cause to believe that the child has committed the act; and

(3) the child was at least sixteen (16) years of age when the act charged was allegedly committed;

unless it would be in the best interests of the child and of the safety and welfare of the community for the child to remain within the juvenile justice system.

SECTION 3. IC 35-47-2-1.5, AS ADDED BY P.L.175-2022, SECTION 9, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 1.5. (a) The following terms are defined for this section:

(1) "Adjudicated a mental defective" means a determination by a court that a person:

(A) presents a danger to the person or to others; or

(B) lacks the mental capacity necessary to contract or manage the person's affairs.

The term includes a finding of insanity by a court in a criminal proceeding.

(2) "Alien" means any person who is not lawfully in the United States. The term includes:

(A) any person who has:

(i) entered the United States without inspection and authorization by an immigration officer; and

(ii) not been paroled into the United States under the federal Immigration and Nationality Act;

(B) a nonimmigrant:

(i) whose authorized period of stay has expired; or

(ii) who has violated the terms of the nonimmigrant category



- 1 under which the person was admitted;
 2 (C) a person paroled under the federal Immigration and
 3 Nationality Act whose period of parole has:
 4 (i) expired; or
 5 (ii) been terminated; and
 6 (D) a person subject to an order:
 7 (i) of deportation, exclusion, or removal; or
 8 (ii) to depart the United States voluntarily;
 9 regardless of whether or not the person has left the United
 10 States.
 11 (3) "Committed to a mental institution" means the formal
 12 commitment of a person to a mental institution by a court. The
 13 term includes:
 14 (A) a commitment for:
 15 (i) a cognitive or mental defect; or
 16 (ii) a mental illness; and
 17 (B) involuntary commitments.
 18 The term does not include voluntary commitments or a
 19 commitment made for observational purposes.
 20 (4) "Crime of domestic violence" has the meaning set forth in
 21 IC 35-31.5-2-78.
 22 (5) "Dangerous" has the meaning set forth in IC 35-47-14-1.
 23 (6) "Fugitive from justice" means any person who:
 24 (A) flees or leaves from any state to avoid prosecution for a
 25 felony or misdemeanor offense; or
 26 (B) flees or leaves any state to avoid testifying in a criminal
 27 proceeding.
 28 (7) "Indictment" means any formal accusation of a crime made by
 29 a prosecuting attorney in any court for a crime punishable by a
 30 term of imprisonment exceeding one (1) year.
 31 (8) A crime or offense "punishable by a term of imprisonment
 32 exceeding one (1) year" does not include a federal or state crime
 33 or offense pertaining to antitrust violations, unfair trade practices,
 34 restraints of trade, or other similar offenses relating to the
 35 regulation of business practices.
 36 (b) Except as provided in subsections (c) and (d), the following
 37 persons may not knowingly or intentionally carry a handgun:
 38 (1) A person convicted of a federal or state offense punishable by
 39 a term of imprisonment exceeding one (1) year.
 40 (2) A fugitive from justice.
 41 (3) An alien.
 42 (4) A person convicted of:



- 1 (A) a crime of domestic violence (IC 35-31.5-2-78);
- 2 (B) domestic battery (IC 35-42-2-1.3); or
- 3 (C) criminal stalking (IC 35-45-10-5).
- 4 (5) A person restrained by an order of protection issued under
- 5 IC 34-26-5.
- 6 (6) A person under indictment.
- 7 (7) A person who has been:
- 8 (A) adjudicated dangerous under IC 35-47-14-6;
- 9 (B) adjudicated a mental defective; or
- 10 (C) committed to a mental institution.
- 11 (8) A person dishonorably discharged from:
- 12 (A) military service; or
- 13 (B) the National Guard.
- 14 (9) A person who renounces the person's United States citizenship
- 15 in the manner described in 8 U.S.C. 1481.
- 16 (10) A person who **is at least eighteen (18) years of age but is**
- 17 **less than**
- 18 ~~(A) eighteen (18) years of age; or~~
- 19 ~~(B) twenty-three (23) years of age and has an adjudication as~~
- 20 ~~a delinquent child for an act described by IC 35-47-4-5~~
- 21 ~~unless authorized under IC 35-47-10.~~
- 22 (c) Subsection (b)(4)(A) and (b)(4)(B) does not apply to a person if
- 23 a court has restored the person's right to possess a firearm under
- 24 IC 35-47-4-7.
- 25 (d) A person who has:
- 26 (1) been adjudicated dangerous under IC 35-47-14-6; and
- 27 (2) successfully petitioned for the return of a firearm under
- 28 IC 35-47-14-8 with respect to the adjudication under subdivision
- 29 (1);
- 30 is not prohibited from carrying a handgun under subsection (b) on the
- 31 basis that the person was adjudicated dangerous under subdivision (1).
- 32 However, the person may still be prohibited from carrying a handgun
- 33 on one (1) or more of the other grounds listed in subsection (b).
- 34 (e) A person who violates this section commits unlawful carrying of
- 35 a handgun, a Class A misdemeanor. However, the offense is a Level 5
- 36 felony if:
- 37 (1) the offense is committed:
- 38 (A) on or in school property;
- 39 (B) within five hundred (500) feet of school property; or
- 40 (C) on a school bus; or
- 41 (2) the person:
- 42 (A) has a prior conviction of any offense under:



(i) this section;

(ii) section 1 of this chapter (carrying a handgun without a license) (before its repeal); or

(iii) section 22 of this chapter; or

(B) has been convicted of a felony within fifteen (15) years before the date of the offense.

SECTION 4. IC 35-47-10-5, AS AMENDED BY P.L.148-2024, SECTION 28, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 5. (a) A child who knowingly ~~or~~ intentionally ~~or recklessly~~ possesses a firearm for any purpose other than a purpose described in section 1 of this chapter commits ~~dangerous~~ **unlawful** possession of a firearm **by a child**, a Class A misdemeanor. However, the offense is a Level 5 felony if: ~~the child has a prior conviction under this section or has been adjudicated a delinquent for an act that would be an offense under this section:~~

(1) the child has a prior conviction under this section;

(2) the child has been adjudicated a delinquent for an act that would be an offense under this section; or

(3) the child committed the offense:

(A) on or in school property;

(B) within five hundred (500) feet of school property; or

(C) on a school bus.

(b) A child who knowingly or intentionally provides a firearm to another child whom the child knows:

(1) is ineligible for any reason to purchase or otherwise receive from a dealer a firearm; or

(2) intends to use the firearm to commit a crime;

commits a Level 5 felony. However, the offense is a Level 3 felony if the other child uses the firearm to commit murder (IC 35-42-1-1).

